

Amendment No. 5 to HB0819

Garrett
Signature of Sponsor

AMEND Senate Bill No. 1369

House Bill No. 819*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-11-1602(10)(B), is amended by adding the following as a new subdivision:

() An acute care hospital;

SECTION 2. Tennessee Code Annotated, Section 68-11-1602, is amended by adding the following as a new subdivision:

() "Acute care hospital" means a hospital with a primary focus on patients with an average length of stay of twenty-five (25) days or less;

SECTION 3. Tennessee Code Annotated, Section 68-11-1607, is amended by adding the following as a new subsection:

() This part does not require a certificate of need to establish or operate an acute care hospital.

SECTION 4. Tennessee Code Annotated, Section 68-11-204(a)(1), is amended by adding the following as a new subdivision:

() Acute care hospital;

SECTION 5. Tennessee Code Annotated, Section 68-11-202(a)(1), is amended by adding "acute care hospitals," immediately preceding "recuperation centers".

SECTION 6. Tennessee Code Annotated, Section 68-11-1602(10)(B), is amended by adding the following as a new subdivision:

() A satellite emergency department;

SECTION 7. Tennessee Code Annotated, Section 68-11-1607(a)(6), is amended by deleting the subdivision and substituting:

(6) Except as provided in subsection (x), the establishment of a satellite inpatient facility by a hospital at a location other than the hospital's main campus.

SECTION 8. Tennessee Code Annotated, Section 68-11-1607(x)(1), is amended by deleting "and subject to subdivision (x)(3),".

SECTION 9. Tennessee Code Annotated, Section 68-11-1607(x)(3), is amended by deleting the subdivision.

SECTION 10. Tennessee Code Annotated, Section 68-11-1607(y), is amended by deleting the subsection.

SECTION 11. Tennessee Code Annotated, Section 68-11-204(a)(1), is amended by adding the following as a new subdivision:

() Satellite emergency department;

SECTION 12. Tennessee Code Annotated, Section 68-11-204, is amended by adding the following as a new subsection:

() A person or entity shall not establish or operate a satellite emergency department unless the satellite emergency department is licensed as an outpatient department of a hospital licensed under this title.

SECTION 13. Tennessee Code Annotated, Section 68-11-205(g)(1)(A)(iii), is amended by deleting the subdivision.

SECTION 14. Tennessee Code Annotated, Section 68-11-202(a)(1), is amended by adding "satellite emergency departments," immediately preceding "recuperation centers".

SECTION 15. Tennessee Code Annotated, Section 68-11-1602(10)(B), is amended by adding the following as a new subdivision:

() An agency, institution, facility, or place, whether publicly or privately owned or operated, that provides cardiac catheterization;

SECTION 16. Tennessee Code Annotated, Section 68-11-1607(a)(3)(E), is amended by deleting the subdivision.

SECTION 17. Tennessee Code Annotated, Section 68-11-204(a)(1), is amended by adding the following as a new subdivision:

() Cardiac catheterization;

SECTION 18. Tennessee Code Annotated, Section 68-11-204, is amended by adding the following as a new subsection:

()

(1) A person or entity shall not initiate or provide cardiac catheterization services unless the facility providing such services is licensed as an outpatient department of a hospital licensed under this title.

(2) Subdivision () (1) does not apply to a facility providing cardiac catheterization services that was in operation as of the effective date of this act.

SECTION 19. Tennessee Code Annotated, Section 68-11-202(a)(1), is amended by adding "cardiac catheterizations," immediately preceding "recuperation centers".

SECTION 20. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2028, the public welfare requiring it.